

Data protection information for the study 'Emotional expression in AI characters'

1. Name of the processing activity

Online study 'Emotional expression in AI characters': how people judge the emotions shown by artificial conversational partners.

2. Name and contact details of the responsible body

Responsible for the processing of your data is the University of Augsburg, represented by its President, Universitätsstraße 2, 86159 Augsburg, Germany, Tel. +49 821 598-0.

The study is carried out by Prof. Dr. Elisabeth André and Tobias Hallmen, Chair for Human-Centered Artificial Intelligence, University of Augsburg. Contact: tobias.hallmen@uni-a.de.

3. Name and contact details of the data protection officer

You can reach our data protection team (data protection officer Prof. Dr. Benedikt Buchner and Dr. Daniel Schmid) at Universität Augsburg, Juristische Fakultät, Universitätsstraße 24, 86159 Augsburg, Tel. 0821/598-65961, datenschutz@uni-augsburg.de.

4. Purposes and legal basis of the processing

4.1 Purposes:

Your data will be processed for the following purposes:

- To study how people judge the emotional expression of AI conversational partners. You have ten short text conversations with AI characters in everyday situations. After each one you rate how the character behaved. At the end you answer questionnaires about yourself.
- To analyse the data statistically and publish the results in scientific publications.
- To make the results verifiable: we screen the conversation texts, remove identifying details and deposit the pseudonymised texts in a scientific research repository.

4.2 Legal basis

Your data will be processed on the basis of your consent (Art. 6(1)(a) GDPR). In addition, the processing serves scientific research in the public interest (Art. 6(1)(e) GDPR in conjunction with Art. 4(1) and Art. 25 of the Bavarian Data Protection Act, BayDSG).

5. Categories of personal data that are processed

We process the following personal data:

- Your participant ID (your Prolific ID).

- The full text of every conversation, including everything you type. Please do not type anything that identifies you or anyone else, such as real names, places of work or addresses.
- Your ratings of each conversation and your answers in optional free-text fields.
- Your answers to questionnaires about empathy, about how you notice and describe your own feelings, about how much you see human qualities in non-human things, and about your experience with chatbots.
- Demographic information that we ask in the study: your age, gender (optional), country of residence, how many years you have lived there, and the culture you identify with (optional).
- Timing and usage data, for example how long each conversation and each survey page took.
- Technical logs of the study platform. They do not contain IP addresses.

We do not use the demographic profile data that Prolific holds about you. From Prolific we only receive your Prolific ID and your submission status for payment. All demographic information is asked in the study itself.

How we protect your identity: during the study, your data is stored under your Prolific ID, never under your name. We do not receive your name or contact details. As long as the Prolific ID is stored with your data, the data is pseudonymised, not anonymised. Once data collection and payment are complete, we replace your Prolific ID with a random number. From then on, we can no longer link the data to you. Only data in this form is shared or published. Please note that the conversation texts contain whatever you typed. This is why we screen them and remove identifying details before sharing them.

6. Recipients or categories of recipients of personal data

Your data will be forwarded to the following recipients:

6.1 Internal recipients:

- Members of the research team at the Chair for Human-Centered Artificial Intelligence who carry out and analyse the study.

6.2 External recipients:

- OpenAI Ireland Ltd, Dublin, Ireland: generates the AI character's replies. For each reply, the conversation text so far is sent to OpenAI. OpenAI receives only the conversation text, never your participant ID or your questionnaire answers. OpenAI processes the text on our behalf under its Data Processing Addendum and does not store it (Zero Data Retention).
- Prolific Academic Ltd, London, United Kingdom: recruitment and payment. Prolific receives your submission status.
- Research partners at other research institutions: only pseudonymised data that has been screened, for joint analysis and publication.
- The scientific public: aggregate results in scientific publications, and screened, pseudonymised conversation texts in a research repository.

7. Transfers of personal data to a third country or to an international organisation

Your data will be transferred to the following third country or international organisation:

- USA: OpenAI Ireland Ltd uses sub-processors in the USA. Only conversation text is transferred, no IDs and no questionnaire answers. Safeguard: Standard Contractual Clauses of the European Commission (Art. 46(2)(c) GDPR) or the EU-US Data Privacy Framework (Art. 45 GDPR).
- United Kingdom: Prolific receives your Prolific ID and submission status. Safeguard: the European Commission has decided that the United Kingdom ensures an adequate level of data protection (Art. 45 GDPR).

8. Duration of storage of personal data

We store your data as follows:

- Prolific ID: replaced by a random number as soon as data collection and payment are complete, at the latest three months after the end of data collection.
- Pseudonymised research data (conversation texts, ratings, questionnaire answers, timing data): kept for 10 years after publication, as required by the German Research Foundation's (DFG) guidelines for good scientific practice, then deleted.
- OpenAI: stores no conversation content (Zero Data Retention).
- Technical logs of the study server: deleted 6 months after the end of data collection.

9. Rights of the persons affected

According to the General Data Protection Regulation (GDPR), you have the following rights:

- You can request information as to whether and, if so, which of your personal data we process and receive further information related to the processing (Art. 15 GDPR). Please note that this right to access may be restricted or excluded in certain cases.
- If incorrect personal data is processed, you have the right to rectification (Art. 16 GDPR).
- If the legal requirements are met, you can request the erasure of your personal data or the restriction of its processing (Art. 17 and 18 GDPR). However, the right to erasure pursuant to Art. 17 (1) and (2) GDPR does not apply if, among other things, the processing of personal data is necessary for the performance of a task carried out in the public interest or in the exercise of official authority (Art. 17 (3) (b) GDPR).
- If the processing is carried out for the performance of a public task (Art. 6 para. 1 subpara. 1 letter e GDPR), you have the right to object to the processing of your data at any time if you have reasons for doing so that arise from your particular situation (Art. 21 para. 1 sentence 1 GDPR).

If you exercise your rights, we will check whether the legal requirements for this are met.

Further restrictions, modifications and, where applicable, exclusions of the aforementioned rights may result from the General Data Protection Regulation or national legislation.

10. Withdrawal of consent

You can withdraw your consent at any time with effect for the future. This will not result in any disadvantages for you. To withdraw, send an informal e-mail to tobias.hallmen@uni-a.de and quote your participant ID (Prolific ID). This is possible until your Prolific ID has been replaced by a random number (see section 8). After that, we can no longer find your data. Withdrawn data is blocked and not used in any new analysis. Results that were already produced remain in use. The withdrawal does not affect the lawfulness of the processing carried out on the basis of your consent until withdrawal.

11. Right to lodge a complaint with the supervisory authority

You also have the right to lodge a complaint with the Bavarian State Commissioner for Data Protection. You can reach him under the following contact details:

Postal address: Postfach 22 12 19, 80502 München; Hausanschrift: Wagnmüllerstr. 18, 80538 München; Telefon: +49 89 212672-0; Telefax: +49 89 212672-50; Contact form: <https://www.datenschutz-bayern.de/service/complaint.html>

12. Voluntariness or obligation to provide

Taking part in this study is voluntary. You are not obliged to provide your data. If you do not consent, you cannot take part. In that case, please return your submission on Prolific; you will not receive payment. There are no other disadvantages for you.